

Ashwathnarayan S/O Sabareddy vs Sujatha W/O Ashwathnarayan on 14 February, 2018

Bench: L.Narayana Swamy, G.Narendar

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IN THE HIGH COURT OF KARNATAKA
KALABURAGI BENCH

DATED THIS THE 14TH DAY OF FEBRUARY 2018

PRESENT

THE HON'BLE MR.JUSTICE L.NARAYANA SWAMY

AND

THE HON'BLE MR.JUSTICE G.NARENDAR

MISCELLANEOUS FIRST APPEAL NO.200070/2015 (FC)

BETWEEN

Ashwathnarayan
S/o Sabareddy,
Aged about 35 years,
Occ. Business,
R/o Plot No.56, Srinagar,
Jewargi Road, Gulbarga

...Appellant

(By Sri Sanjeev Patil, Advocate)

AND

Sujatha W/o Ashwathnarayan,
Aged about 38 years, Occ. Employed,
R/o C/o Vishwanath Sugurmath,
Plot No.27/B, Srinagar,
Behind Chittari Saw Mill,
Jewargi Road, Gulbarga.

...Respondent

(Sri Sudheer Kulkarni, Advocate)

This Miscellaneous First Appeal is filed under
Section 19(1) of the Family Court Act against the judgment and

decree dated 28.08.2014 passed in M.C.No.209/2013 on the file of District Judge, Family Court, Gulbarga wherein dismissed the petition under Section 13(1)(ia)(ib) of Hindu Marriage Act.

This appeal coming on for orders this day, G.NARENDAR J., delivered the following:

JUDGMENT

Heard the learned counsel for the appellant and the respondent.

2. The counsels submit an application under Order 23 Rule 3 of Code of Civil Procedure.

3. The brief facts of the case is that the respondent filed a petition under Section 13(1)(ia)(ib) of Hindu Marriage Act, 1956, praying for a decree of divorce to dissolve the marriage solemnized on 04.05.2007 and it is stated that they had led a married life for a period of four years and during the said period the appellant/respondent wife was not cooperative and would avoid cohabitation and consummation of the marriage and on medical examination it was found that the right ovary is not visualized and there is no dominant follicle in left ovary and the doctor has opined that it is not a curable disease and this fact was suppressed by the respondent-wife and the parents and that subsequently the respondent secured employment at B.Shamsundar Memorial Education Society, Gulbarga, in the year 2009 and from the date of her securing employment her attitude towards the appellant turned hostile and violent and she has started to misbehave and abuse the appellant, leading to deterioration of marital life.

4. Per contra the respondent contends that she has also made several attempts and it is submitted that on the contrary it is the appellant who suffers from lack of virility and that the appellant has no interest in marital life and that being business minded he is seeking to dissolve the marriage with the intention of searching for another partner and it is hence prayed by the appellant that the judgment and decree of the Family Court passed in M.C.No.209/2013 dated 28.08.2014 be set-aside and the petition preferred by the appellant under Section 13(1)(ia)(ib) of Hindu Marriage Act be allowed.

5. Now both the parties have filed the aforestated application and the application is also counter signed by the respective counsels. The parties are before the Court and identified by their respective counsels. Under the said application the parties have voluntarily undertaken to withdraw the allegations made against each other, both in the petition and in their replies. That the parties have agreed that the respondent-wife has agreed for permanent alimony of Rs.5,50,000/- and that a sum of Rs.50,000/- has already been paid by way of demand draft dated 28.08.2017 drawn on Pragati Krishna Grameena Bank, Karuneshwara Nagar Branch, Kalaburagi. That today the appellant is paying the remaining sum of Rs.5,00,000/- by way of demand draft No.228009 dated 06.02.2018 drawn on the aforesaid bank. The same is handed over to the learned counsel appearing for the respondent who in turn hand's it over to the respondent who acknowledges the receipt of the same. It is jointly prayed by the parties that the judgment and award of the Family Court passed in M.C.No.209/2013 dated 28.08.2014 be set aside and the petition filed under Section 13(1)(ia)(ib) of

Hindu Marriage Act allowed.

6. In view of the above, the application is taken on record and appeal is ordered accordingly.

7. Consequently, the marriage solemnized between the parties on 04.05.2007 at Sri Shivayogi Siddarameshwar Kalyan Mantap, Kotanoor Math, Jewargi Road, Gulbarga as per their customs and traditions, hereby stands dissolved by this decree of divorce.

Appeal stands allowed accordingly.

There shall be no order as to costs.

Sd/-

JUDGE Sd/-

JUDGE sn